

25STCV11833 25STCV11833

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Case Number: 25STCV11833 Hearing Date: September 23, 2026 Dept: 224

Love v. A-L Financial Corporation Autonation DBA South Bay Nissan et al.,

TENTATIVE RULING

Plaintiff's Motion for Reconsideration is DENIED.

Introduction

On July 31, 2012, Plaintiff Tiffany Love filed the Complaint in this action.

On July 31, 2025, Plaintiff filed a Motion to Set Aside/Vacate Default Judgment.

On December 5, 2025, the Court continued the hearing on that motion. It ordered Plaintiff to give notice of the ruling requiring the responding party to file a formal opposition.

On April 17, 2026, the Court denied the Motion to Set Aside/Vacate Default Judgment.

On April 28, 2026, Plaintiff filed the instant Motion for Reconsideration.

No opposition has been filed.

Legal Standard

Under Code of Civil Procedure Section 1008, subdivision (a), "When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order to decisions were made, and what new or different facts, circumstances, or law are claimed to be shown."

Section 1008 is "the clear legislative intent to restrict motions to reconsider to circumstances where a party offers the court some fact or authority that was not previously considered by it" and could not have been considered by it. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) Section 1008 is the exclusive means for modifying, amending or revoking an order. That limitation is expressly jurisdictional." (Id. at p. 1499.)

There is a strict requirement for diligence on the moving party; the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.)

The Court lacks the jurisdiction to reconsider a prior ruling, on motion of a party, where the motion does not comply with the requirements of Code of Civil Procedure section 1008. (Code Civ. Proc., § 1008, subd. (e); Le Francois v. Goel (2005) 35 Cal.4th 1094, 1106.) The purpose of this jurisdictional bar is to protect the Court from repetitive motions. (Ibid.)

Discussion

Plaintiff asks the Court to reconsider its denial of her motion to set aside/vacate default judgment. She states that she served notice of the Court's December 5, 2025 ruling on December 29, 2025, but did not file proof of that service before the hearing.

Reconsideration or renewal under Code of Civil Procedure section 1008 requires new or different facts, circumstances, or law. It also requires a satisfactory explanation for not presenting them earlier. (Code Civ. Proc., § 1008, subs. (a), (b); Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.)

Plaintiff's only "new fact" is that she mailed the notice in December 2025. That fact was within her own knowledge, and the mailing receipt was in her possession, before the prior hearing. It is not new. Her explanation for not filing it is that the task "simply escaped" her during a difficult period. Inadvertence in presenting evidence she already had is not the showing section 1008 requires.

Further, an application must be supported by an affidavit stating what application was made before, when and to what judge, what order was made, and what new or different facts are shown. Plaintiff's declaration does not identify the date of the prior ruling or the judicial officer who made it.

The motion is DENIED.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.